

100 Beal Street Senior Affordable Housing

Executive Fact Sheet & Corrected Legal Title Briefing • Hingham, Massachusetts

Subject Property: 100 Beal Street (Map 58, Lot 23)

Fee Owner: Hingham Housing Authority (M.G.L. c. 121B)

Executive Director: James Marathas (2021–pres.)

Developer Partner: Peabody Properties / AHSC

Disposition: 8.6-Acre Lot B (99-Yr NNN Lease)

ZBA Status: Pre-40B Filing (Subsidy Structuring)

1. Executive Summary & Core Transaction Profile

The **100 Beal Street Senior Affordable Housing Project** is a proposed 3-story, 68-unit affordable senior apartment community situated on an 8.6-acre portion (**Lot B**) of the 15.014-acre parent parcel owned in fee simple by the **Hingham Housing Authority (HHA)**. The project is advancing toward a negotiated, friendly **Chapter 40B Comprehensive Permit** before the Hingham Zoning Board of Appeals (ZBA).

Key Transaction Parameters:

- Parent Parcel:** 15.014 Acres (Map 58, Lot 23; Plan Book 17, Page 508; Book 09097, Page 158).
- Ground Lease Footprint (Lot B):** 8.600 Acres (~375,000 sq. ft.) with **~6.5 Acres** of net buildable upland plateau outside wetland setbacks.
- Excluded Parcels:** Lot A (2.400 acres; preserved 12-bed adolescent facility under Bay State Community Services); Lot C (3.550 acres; woodland and conservation buffer).
- Density Trajectory:** 20–48 units (early baseline) → 60 units (HHA RFP) → 68 units (awarded proposal). 100% restricted to seniors aged 62+.
- Ground Lease Terms:** 99 years (triple-net / NNN); \$500,000 minimum upfront payment + annual lease payments; 100% building reversion to HHA.

2. Verified Plymouth County Registry of Deeds Chain of Title

A complete census of all 28 recorded instruments under HINGHAM HOUSING AUTHORITY in Plymouth County confirms the definitive title record for 100 Beal Street:

Date	Citation	Type	Parties	Legal Description & Title Effect
01/24/1974	Bk 03961, Pg 692	DEED	USA (HEW) → Town of Hingham	Surplus Naval Ammunition Depot conveyance with 30-year educational covenant.
04/21/1989	Bk 09097, Pg 158	DEED	Town → Hingham Housing Authority	4-page Fee Deed (Doc #29758, pp. 158–161) conveying 15.014 acres for \$45,751 with 30-year reverter.
04/21/1989	Bk 09097, Pg 162-170	NOTC	Hingham ZBA / Town Clerk → HHA	Town Clerk no-appeal cert (p. 162), ZBA 40B modification (p. 163), and 40B decision (p. 166).
2001	Plan 100 of 2001	PLAN	HHA (Gale Associates, Inc.)	<i>Division of School Tract II</i> : Delineates 2.0-acre building lot and 8.02-acre Lot 2.
07/18/2019	Bk 51379, Pg 244	NOTC	DHCD & HHA → Commonwealth	Notice of Statutory Transfer Restriction under M.G.L. c. 121B, § 34; bars unapproved alienation.
12/10/2024	Bk 59527, Pg 273	ORDR	Conservation Comm. → HHA	Order of Resource Area Delineation (ORAD, MassDEP 034-1509); confirms wetland boundaries.

3. Statutory Expiration of Reverter & The 2021 Rescission Vote

Expiration of 1989 Reverter (March 7, 2019): The 1989 deed contained a 30-year reverter for educational/adolescent residential use under M.G.L. c. 184A, § 3. Because no breach occurred within 30 years, the possibility of reverter statutorily extinguished on **March 7, 2019**, converting HHA's title to a fee simple absolute. The Select Board met on February 26, 2019 (nine days prior to expiration) to explore litigation.

Formal Rescission Vote (September 7, 2021): Following DHCD's intervention under M.G.L. c. 121B, § 34 (Book 51379, Page 244), the HHA Board of Commissioners voted **4–0 on September 7, 2021 to formally rescind** its prior June 5, 2019 motion that had contemplated conveying 19 acres back to the Town, permanently mooted the dispute.

2006 Town Meeting Vote: While 2006 Town Meeting Article 38 authorized amending the 1989 deed, the Registry census confirms that **no deed amendment or certificate of release was ever executed or recorded** in Plymouth County.

4. Disentangling 100 Beal Street from the Center for Active Living (CAL)

Dimension	Center for Active Living (CAL / HCAL)	100 Beal Street Senior Affordable Housing
Facility Type	Municipal Civic Center: Daytime recreation, health clinics, and Council on Aging offices.	Residential Housing: Permanent affordable rental apartment homes (68 units, age 62+).
Sponsoring Body	Town of Hingham: Select Board, Council on Aging, and CALBC.	Hingham Housing Authority (HHA): Independent body corporate and politic under M.G.L. c. 121B.
Parcel Location	Bare Cove Park Drive (Map 69, Parcel 44; 0 Fort Hill St).	100 Beal Street (Map 58, Lot 23; School Tract II).
Capital Funding	\$29.93M municipal debt borrowing funded by local property taxes.	Federal LIHTC equity, MassHousing, and state subsidy bonds.
Town Meeting Role	Required 2/3 legislative vote to borrow debt (Failed 510–470).	Town Meeting vote not required; HHA holds statutory disposition power.
Current Status	DEFEATED AT TOWN MEETING (Siting search reset).	ACTIVE (Peabody Properties; ORAD issued; 40B pending).

5. Zoning, Chapter 40B Permitting & Safe Harbor Dynamics

Pre-Application Posture: Review of the Town's official pending dockets confirms that **no Chapter 40B Comprehensive Permit application has been filed with the ZBA for 100 Beal Street as of September 2026**. The project is actively completing preliminary architectural design, civil stormwater engineering, and state subsidy structuring.

Safe Harbor Leverage (760 CMR 56.03): Because Hingham's Subsidized Housing Inventory (SHI) exceeds the 10% statutory threshold, the ZBA possesses the legal authority to invoke Safe Harbor. This dynamic ensures that 100 Beal Street will proceed as a negotiated, "friendly" 40B adhering strictly to local environmental and wetland protection guidelines.

6. Conservation Adjudication & Weymouth Back River ACEC

The site's wetland resource areas were officially adjudicated under an Order of Resource Area Delineation (ORAD, **MassDEP File No. 034-1509**), recorded on **December 10, 2024 at Book 59527, Page 273**. The delineation confirms Bordering Vegetated Wetlands, Isolated Vegetated Wetlands, a certified vernal pool buffer, and a perennial stream draining into Hockley Run and Tucker's Swamp within the **Weymouth Back River Area of Critical Environmental Concern (ACEC)**.